



UCC

Coláiste na hOllscoile Corcaigh, Éire
University College Cork, Ireland

**Why Did the Strategic Housing Development Process Affect Democratic Engagement in
Ireland's Planning of Large-Scale Residential Developments between 2016 and 2022?**

Francesca Sorensen Lewis

Submitted for the degree of

Bachelor of Science (BSc) Government and Political Science

University College Cork

Department of Government and Politics

Head of Department: Dr Liam Weeks

Supervisor: Dr Niall Duggan

2026

Table of Contents

Declaration.....	7
Acknowledgements.....	8
List of Abbreviations.....	9
List of Figures.....	10
List of Tables.....	11
Abstract.....	12
Chapter 1 – Introduction.....	14
Chapter 2 – Literature Review.....	16
2.0 Introduction.....	16
2.1 Democratic Accountability.....	17
2.2 Public Participation in Planning.....	21
2.3 Irish Planning Governance and Centralisation.....	25
2.4 Strategic Housing Developments.....	27
2.5 Gap in Research.....	30

Chapter 3 – Methodology.....	32
3.0 Introduction.....	32
3.1 Research Design.....	32
3.2 Case Selection.....	33
3.3 Data Collection.....	34
3.4 Data Analysis.....	35
3.5 Ethical Considerations and Limitations.....	36
 Chapter 4 – Case Study 1: Castlelands SHD (Balbriggan).....	 37
4.0 Introduction.....	37
4.1 Development Overview.....	37
4.2 Public Participation.....	38
4.2.1 Scale of Participation.....	38
4.2.2 Nature of Submissions.....	39
4.2.3 Assessment and Response to Submissions.....	40
4.3 Democratic Accountability.....	41
4.3.1 Transparency and Reason-Giving.....	41
4.3.2 Oversight and Regulatory Mechanisms.....	42
4.4 Governance Structure.....	43
4.5 Key Finding: Centralised Decision-Making and Limited Participatory Influence.....	43

Chapter 5 – Case Study 2: Taylors Lane SHD (Ballyboden).....	44
5.0 Introduction.....	44
5.1 Development Overview.....	44
5.2 Public Participation.....	46
5.2.1 Scale of Participation.....	46
5.2.2 Nature of Submissions.....	46
5.2.3 Assessment and Response to Submissions.....	47
5.3 Democratic Accountability.....	49
5.3.1 Transparency and Reason-Giving.....	49
5.3.2 Oversight and Regulatory Mechanisms.....	50
5.4 Governance Structure.....	51
5.5 Key Finding: Centralised Decision-Making Despite High Levels of Participation.....	52
 Chapter 6 – Data Analysis and Discussion.....	 53
6.0 Introduction.....	53
6.1 Participation and Influence.....	55
6.2 Centralisation of Authority.....	56
6.3 Prioritisation of National Policy.....	57
6.4 Accountability and Judicial Review.....	58
6.5 Why the SHD Process Affected Democratic Engagement (2016-2022).....	59

Chapter 7 – Conclusion	61
7.0 Introduction.....	61
7.1 Summary of Key Findings.....	61
7.1.1 Finding 1 – Participation Without Influence.....	62
7.1.2 Finding 2 – Centralisation of Authority.....	62
7.1.3 Finding 3 – National Policy Priority.....	63
7.1.4 Finding 4 – Procedural Accountability and Judicial Review.....	63
7.2 Implications for Democratic Engagement.....	64
7.3 Limitations of the Study.....	65
7.4 Future Research and Broader Governance Implications.....	65
7.5 Final Reflection.....	66
 Bibliography.....	 68
 Appendix A – Thematic Codebook and Extracts.....	 74

Declaration of Authenticity

This is to certify that the work I am submitting is my own and has not been submitted for another degree, either at University College Cork or elsewhere. All external references and sources are clearly acknowledged and identified within the contents. I have read and understood the regulations of University College Cork concerning plagiarism.

Acknowledgements

I would like to express my sincere gratitude to Dr Niall Duggan for his guidance, support, and valuable feedback throughout the development of this dissertation.

I would also like to thank University College Cork for providing the academic support and resources necessary to complete this study.

Finally, I would like to acknowledge the continued support of my parents and friends throughout this process. Their encouragement, patience, and understanding were greatly appreciated and played an important role in the completion of this dissertation.

List of Abbreviations

ABP – An Bord Pleanála

SHD – Strategic Housing Development

LRD – Large-Scale Residential Development

JR – Judicial Review

List of Figures

Figure 1: Accountability as a Social Relation

Figure 2: Arnstein's Ladder of Citizen Participation

Figure 3: Case Selection Criteria

Figure 4: SHD Thematic Code Framework

List of Tables

Table 6.1: Cross-Case Thematic Comparison of Democratic Engagement under the SHD Framework

Abstract

This dissertation examines why the Strategic Housing Development (SHD) process affected democratic engagement in Ireland's planning of large-scale residential developments between 2016 and 2022. Introduced as part of the government's response to the housing crisis, the SHD framework aimed to accelerate housing delivery by allowing direct applications to An Bord Pleanála (ABP) and bypassing the local authority decision-making stage. This reform prioritised efficiency and certainty. However, it also raised concerns regarding its implications for democratic accountability and public participation.

A qualitative comparative case study approach was adopted, analysing two SHD cases known as Castlelands SHD in Balbriggan and Taylors Lane SHD in Ballyboden. This dissertation draws on documentary analysis of Inspector's Reports, Board Decisions, Planning Authority reports, and a High Court judicial review judgement. A thematic coding framework was developed to examine democratic accountability, public participation, governance structure, and planning outcomes.

The findings reveal that the SHD process did not eliminate democratic engagement but fundamentally restructured how it operated. Participation remained formally available but functioned primarily in a consultative rather than determinative capacity, with limited influence on final outcomes. Furthermore, decision-making authority was centralised within ABP, reducing the role of locally elected representatives. Moreover, national planning policy objectives were prioritised over local development plan standards, reinforcing a hierarchical

governance structure. Finally, accountability mechanisms operated through procedural transparency and judicial review, but operated as a legal rather than political form of oversight.

Overall, the SHD framework reshaped democratic engagement through centralisation, technocratic decision-making, and policy prioritisation. This highlights the ongoing tension between housing delivery and democratic governance in Ireland's planning system.

Chapter 1 – Introduction

Rising home prices, limited housing supply, and increasing levels of homelessness are hallmarks of Ireland's prolonged housing crisis. Planning in Ireland is open and participative, encouraging citizens to voice their opinions on planning matters (Department of Housing, Local Government and Heritage, 2025). In doing so, it gives local communities the power to influence planning issues in their area. While planning plays a central role in addressing housing shortages, it also functions as a key mechanism of democratic governance, shaping land use decisions that directly affect communities, local environments, and patterns of development (Grist, 2012).

From this perspective, planning reform in Ireland has increasingly emphasised speed, certainty, and delivery. One of the most significant reforms introduced was the Strategic Housing Development (SHD) process, implemented under the Rebuilding Ireland Action Plan for Housing and Homelessness in 2016. The SHD process was designed to accelerate the delivery of large-scale housing by allowing certain residential developments to bypass local authority decision-making and apply directly to An Bord Pleanála for a limited four-year period (Reidy and Mulryan, 2024). This reform aimed to reduce delays and uncertainty in planning decisions during the housing emergency which began after the 2008 financial crash (Lima, 2018).

Despite being delivery-focused, the SHD process generated significant controversy. This occurred due to the alteration of traditional planning governance, as the removal of local authorities from planning decisions “has the potential to undermine certainty, efficiency, and the efficacy of the planning system in Ireland”(Irish Planning Institute, 2019: 3). Critics argued

that this shift weakened democratic accountability and constrained opportunities for meaningful public participation, leading to concerns regarding transparency, legitimacy, and local democratic oversight. As a result, the SHD process became a central focus for broader debates around efficiency and democracy in planning systems.

This dissertation examines these debates by exploring how the SHD process affected democratic engagement in practice, using the concepts of democratic accountability and public participation as analytical frameworks. The central research question guiding this study is: why did the Strategic Housing Development (SHD) process affect democratic engagement in Ireland's planning of large-scale residential developments? To address this question, the dissertation adopts a qualitative comparative case study approach by examining two SHD cases with different outcomes. This research seeks to assess how accountability mechanisms and participatory opportunities operated under the SHD framework by analysing planning decisions, public submissions, and judicial review judgements.

The remainder of the dissertation is structured as follows. Chapter 2 reviews the relevant theoretical and academic literature on democratic accountability, public participation in planning, Irish planning governance, and SHDs. It identifies key debates and the gaps that are present in the existing research. Chapter 3 outlines the methodology used in the study. Chapter 4 and 5 present the selected case studies descriptively, while Chapter 6 analyses and discusses the findings in relation to the research question. Finally, Chapter 7 concludes by summarising the main findings, reflecting on their implications for democratic planning in Ireland, and identifying areas for future research.

Chapter 2 – Literature Review

2.0 Introduction –

This chapter reviews the academic and theoretical literature that is relevant for the examination of SHDs in Ireland. It creates a conceptual framework through which the research question is addressed and outlines two key democratic principles including democratic accountability and public participation in planning. These concepts provide the analytical lenses used to assess why planning reforms such as the SHD process affect democratic engagement, decision-making processes, and democratic oversight.

The chapter begins by outlining the key theories of democratic accountability by drawing on public administrative literature to identify mechanisms such as transparency, justification, and oversight. Furthermore, theories of public participation in planning are examined with reference to Arnstein's ladder and planning scholarship. This discussion is situated within broader academic debates on Irish planning governance and the increasing centralisation of decision-making power, before reviewing the academic literature of SHDs as a response to the housing crisis.

2.1 Democratic Accountability –

Democratic accountability is a key concept for public decision-making, particularly when state institutions use significant discretionary power. Bovens (2007: 450) defines accountability as a “relationship between an actor and a forum, in which the actor has an obligation to explain and to justify his or her conduct, the forum can pose questions and pass judgement, and the actor may face consequences”. This definition highlights that accountability is an active process, rather than one that depends solely on transparency or information disclosure. As Mulgan (2000: 555) notes, it is an “ever-expanding concept”, which reflects its role in democratic governance. Furthermore, Bovens’ (2007) framework emphasises that justification, scrutiny, and the possibility of sanction are essential to ensuring that public power is exercised in a democratic way. Accountability therefore operates as a social relationship between decision-makers and those who hold them accountable, as illustrated in Figure 1.

Figure 1: Accountability as a Social Relation

- A relationship qualifies as a case of accountability when:
1. there is a relationship between an actor and a forum
 2. in which the actor is obliged
 3. to explain and justify
 4. his conduct;
 5. the forum can pose questions;
 6. pass judgement;
 7. and the actor may face consequences.

(Bovens, 2007: 452)

From this perspective, democratic accountability can be viewed as a concept composed of several components. Transparency forms the foundation of accountability, as it enables information about decision-making processes and outcomes to be made visible (European Parliament, 2019). As Farrell (2024: 197) argues, accountability cannot exist “without openness and transparency, a willingness to share information and to learn from the opinions and views of others in the relationship”. Transparency allows affected actors to understand how and why decisions were made. However, as Bovens (2007: 453) emphasises, transparency alone is “not enough to qualify as a genuine form of accountability”, as it does not necessarily involve scrutiny by a specific forum. Transparency can facilitate access to information through mechanisms such as freedom of information, however it cannot question decisions, assess their legitimacy, or impose consequences.

Furthermore, in addition to transparency, democratic accountability also requires justification, oversight, and the possibility of sanction. Henriques (2023) notes that the primary definitions of justification can be seen as “(a) the act or an instance of justifying something and (b) an acceptable reason for doing something”. Decision-makers are ultimately obliged to give reason, rather than disclosing information. As Bovens (2007: 451) argues, accountability involves the possibility for a “forum to interrogate the actor and to question the adequacy of the information or the legitimacy of the conduct—hence, the close semantic connection between accountability and answerability”. This process of justification is closely linked to oversight, as it depends on the presence of a forum with the power to demand and assess such explanations. Finally, accountability implies the possibility of consequences. These consequences can lead to sanctions on the actor as they are held accountable. Consequences can be “highly formalised, such as fines, disciplinary measures, civil remedies or even panel sanctions, but they can also be based on unwritten rules, as in the case of the political accountability of a minister to

parliament, where the consequence can comprise calling for the minister's resignation"(Bovens, 2007: 452). This ensures that accountability mechanisms have a practical effect rather than just a symbolic one.

Additionally, the literature outlines different forms of accountability operating within democratic systems. Political accountability refers to "constraint on executive power and comprises the mechanisms for holding an agent accountable and the means to apply sanctions when a principle (citizens) transfers decision making power to an agent (the government)"(Walsh, 2020: 1). Nonetheless, administrative accountability is exercised through "regular financial and administrative scrutiny, often on the basis of specific status and prescribed norms"(Bovens, 2007: 456). Finally, legal accountability refers to the duty of people, organisations, and governments to answer for their actions under the law and is exercised through judicial mechanisms. According to Bovens (2007: 456), legal accountability is the "most unambiguous type of accountability, as the legal scrutiny will be based on detailed legal standards, prescribed by civil, penal, or administrative statutes, or precedent". These forms of accountability are distinct, however they operate alongside one another within governance systems.

Moreover, these concepts highlight the political nature of planning decisions. Planning is often presented as expert-led. However, it also involves normative judgements about land use to achieve the best outcome. Land-use planning is "part of the master-planning process: It deals with the types and the distribution of existing and future land uses; their relationship to other planning areas, such as transportation network; and the interactions between land use and the environment"(Stieglitz, 2024). The legitimacy of planning systems depends not only on

expertise and efficiency, but also relies on decision-makers being held accountable for their actions. If accountability mechanisms did not exist, public trust could decline due to concerns regarding a lack of democratic oversight.

In addition, the planning literature identifies a tension between democratic accountability and efficiency. Scholars have noted that planning reforms which prioritise speed, delivery, and certainty may alter traditional forms of democratic oversight and accountability. For example, McDonald and Sheridan (2008) observe that efficiency-orientated planning approaches can lead to a shift in local oversight mechanisms, while Lennon and Waldron (2019, cited in Yang et al., 2024) similarly suggest that reforms focused on delivery may reduce opportunities for democratic participation and accountability. These contributions highlight a larger issue in the planning literature regarding how accountability is reshaped when governance systems prioritise efficiency. Such issues raise questions around who decision-makers are accountable to, through which mechanisms accountability is exercised, and how democratic oversight is maintained within revised planning systems.

Overall, this understanding of democratic accountability provides the analytical framework through which this dissertation examines why the SHD process reshaped democratic engagement within planning decision-making.

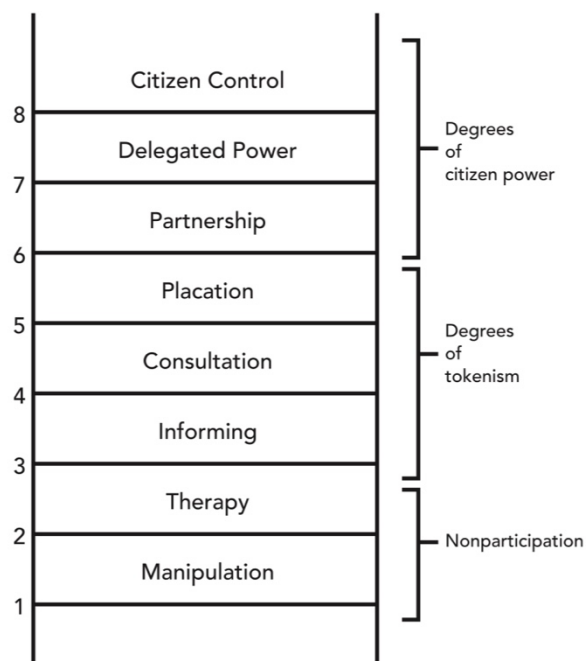
2.2 Public Participation in Planning –

Public participation is a central component of democratic governance and plays an important role in planning systems, as planning decisions directly affect land use, local environments, and communities. Smith (1983, cited in Rowe and Frewer, 2000) defines public participation as “a group of procedures designed to consult, involve, and inform the public to allow those affected by a decision to have an input into that decision”. It ultimately allows for one’s views to be meaningfully considered. Similarly, Bobbio (2018: 1) describes public participation as a “procedural tool which allows policymakers to include new actors (i.e. citizens) in a policy network and entrust them with some design-related tasks”. In the context of planning, public participation is of great importance, as it “ensures that planning procedures are well-functioning and efficient”(Abas et al., 2023: 1). Public participation can therefore be understood as a democratic principle that promotes inclusion, fairness, and legitimacy within governance systems.

Furthermore, Arnstein (1969) provides an influential framework for participation known as the *Ladder of Citizen Participation*, which is shown in Figure 2. The ladder consists of eight rungs with each section “corresponding to the extent of citizens’ power in determining the plan and/or program”(Arnstein, 1969: 216). According to Arnstein (1969: 216), “citizen participation is a categorical term for citizen power”. It is the redistribution of power for the individuals who are excluded from decision-making known as the have-nots. The ladder is split into three different categories with the lowest level being known as non-participation. This part of the ladder includes manipulation and therapy, as “their real objective is not to enable people to participate in planning or conducting programs, but to enable powerholders to educate or cure the

participants”(Arnstein, 1969: 217). The middle rungs represent tokenism, encompassing informing, consultation, and placation, where citizens may be heard but lack the power to influence outcomes (Arnstein, 1969). This highlights that not all forms of participation provide meaningful influence over decision-making. The highest level is regarded as degrees of citizen power, encompassing partnership, delegated power, and citizen control. At this level, the “have-not citizens obtain the majority of decision-making seats, or full managerial power”(Arnstein, 1969: 217). Arnstein’s framework ultimately draws a clear distinction between participation as a procedural requirement and as a source of real influence over decision-making.

Figure 2: Arnstein’s Ladder of Citizen Participation



(Arnstein, 1969: 217)

Arnstein's (1969) framework remains powerful to this day. The ladder of citizen participation lies in its simplicity and "ability to reveal, in pictorial form, the power agendas implicit in many institutionalised narratives and the differences in the forms of strategies of participation that are desired or result"(Collins and Ison, 2006: 3). However, criticisms of the ladder exist. According to Collins and Ison (2006: 3), "Arnstein's ladder, with its focus on power, is insufficient for making sense of participation at a conceptual or practice level". There is clearly no logical progression of the rungs on the ladder of citizen participation (Theyyan, 2015). The divisions chosen do not accurately reflect the distribution of citizen power. Additionally, it is highly normative and adversarial, as it presents the struggle for power between citizens and authorities. In the context of planning, participation can take place in different forms including questionnaires, formal gatherings, official application procedures, and participatory action research (Dalal-Clayton et al., 2000). Nonetheless, these methods "often pit citizens against each other, as they feel compelled to speak of the issues in polarising terms to get their point across"(Innes and Booher, 2004: 419). This eventually leads to planners removing participation mechanisms, as they struggle to make a choice and become sceptical of these methods. Despite these criticisms, Arnstein's ladder remains an effective analytical tool as it highlights questions about power, influence, and the democratic quality of participatory processes. In planning systems, these dynamics are significant as participation is often time-limited and dependent on legal knowledge.

In addition to these critiques, Mancur Olson (1965) provides a structural explanation for uneven public participation. Olson argues that collective action is difficult to sustain in large groups, as individuals may choose not to participate where their voice is limited, even if they are affected by the outcome. According to Olson (1965: 2), "unless the number of individuals in a group is quite small, or unless there is coercion or some other special device to make

individuals act in their common interest, rational, self-interested individuals will not act to achieve their common or group interests”. This helps to explain why participatory processes only attract highly motivated actors and not the wider public. In the context of planning, Olson’s argument suggests that limited participation may reflect resource constraints, rather than a lack of public concern, reinforcing the distinction between formal participation opportunities and their democratic effectiveness. Nevertheless, participation risks becoming consultation without power, linking back to Arnstein’s (1969) distinction between formal participation and meaningful influence.

Moreover, public participation is closely linked to democratic accountability, as it provides a path for decision-makers to be challenged and held accountable for their actions. Meaningful participation can improve the legitimacy of planning decisions, as a wide range of voices are heard and considered. Nonetheless, public participation barriers still exist, resulting in consultation without influence. Understanding the relationship between participation and accountability is essential for evaluating how democratic governance operates within planning systems. Overall, this theoretical foundation provides the basis for examining why participation under the SHD process may operate as either meaningful engagement or consultative within planning decisions.

2.3 Irish Planning Governance and Centralisation –

Irish planning governance has gone through a significant transformation over recent decades, influenced by broader trends in economic development, state reform, and changing government objectives. Formally, the Irish planning system is democratic in nature. It is described as an “open and participative planning system which encourages citizens to have their voices heard in the development plan making process; make observations on proposed developments in a transparent manner and appeal decisions and processes perceived as incorrect”(Department of Housing, Local Government and Heritage, 2025). This framework positions planning as a process that ensures communities shape, influence, and participate in the decision-making process in their local area.

Nonetheless, the planning literature highlights tensions between local democratic control and increasingly centralised, efficiency-driven decision-making (Murray, 2025). Understanding these changes in governance is crucial for examining how accountability and public participation operate within the Irish planning system.

Historically, Ireland’s planning system has been organised around local authorities, who “control the location, amount and type of development by making decisions on planning applications”(Office of the Planning Regulator, 2026). In 1964, all local authorities except for town commissioners were entrusted with the full extent of planning responsibilities (Grist, 2012). Furthermore, elected councillors “create, review and alter the development plan, informed by both technical assistance from officials and extensive public consultation”(Department of Housing, Local Government and Heritage, 2025). This structure

represents planning as a locally embedded democratic function, where decisions that affect the community are subject to political accountability and public scrutiny.

However, since the late twentieth century, Irish planning governance has moved towards centralisation due to a planning reform that has largely focused on delivery and efficiency (Collins, 2025). A key theme in the planning literature is the emergence of a developer-led planning culture, particularly during and after the economic boom in the late 1990s and early 2000s. McDonald and Sheridan (2008) reveal how this period in time prioritised development facilitation and market responsiveness, often at the expense of local democratic oversight. A clear example is when McDonald and Sheridan (2008: 8) reveal that developers will think of a figure for the price of a house, as it is all “about what they feel they can get away with”. This ultimately led to an increase in property development, which created an imbalance between public consideration and private development pressures. During this time, planning decisions became more technocratic, resulting in greater reliance on professional planners and a decrease in public participation.

Similarly, Lennon and Waldron (2019, cited in Yang et al., 2024: 6) argue that recent planning reforms have “effectively de-democratised elements of the planning system”, placing delivery above local accountability. These accounts suggest that government reforms have reshaped accountability in the Irish planning system, leading to important questions being raised regarding who decision-makers are accountable to and through what mechanisms accountability is exercised.

Overall, this section has situated Irish planning governance within broader debates on centralisation, technocratic decision-making, and democratic accountability, providing important context for understanding how reforms such as the SHD process can reshape democratic engagement within the planning system. The following section examines the literature on SHDs and considers how they have been assessed in relation to democratic accountability and public participation.

2.4 Strategic Housing Developments –

SHDs occurred as a policy response to the housing crisis in Ireland. They are widely examined in the scholarly literature and were first introduced by the Rebuilding Ireland Action Plan for Housing and Homelessness 2016 for a limited four-year period which began in 2017 and expired in 2022 (Reidy and Mulryan, 2024). SHDs were designed as a planning mechanism to drive the delivery of large-scale housing developments. A main feature of the “fast-track schemes is the shift in decision-making power from local authorities to central government or specially created bodies, reflecting the neoliberal tendency towards centralisation and market-orientated governance”(Yang et al., 2024: 6). The process was created as policymakers framed the housing shortage as a crisis, requiring fast-track housing that prioritised speed, certainty, and delivery.

Furthermore, Lennon and Waldron (2019: 16) outline a central theme in the literature which emphasises that the “Fast Track process effectively enhances the technocratic nature of the Irish

planning system concurrent with reducing key dimensions of public representation”. Under the SHD process, decision-making authority for new large-scale developments was removed from local authorities and transferred to An Bord Pleanála (ABP) (Grist, 2012). Scholars such as Murphy, Fox-Rodgers and Grist (2014, cited in Yang et al., 2024: 7) note that this new process has “transformed the role of planners from public interest advocates to facilitators of development”. It has reduced the role of elected councillors and political oversight, placing more emphasis on expert-led assessment and regulatory compliance. From this, SHDs are often distinguished as a technocratic reform, ensuring that local political contestation does not interrupt the delivery of fast-track housing.

Moreover, there are a myriad of concerns regarding democratic accountability in the SHD process. According to Reidy and Mulryan (2024), the centralisation of decision-making under SHDs weakened traditional accountability mechanisms as planning decisions were no longer made locally. This reduced political scrutiny and justification and had the “potential to undermine certainty, efficiency, and the efficacy of the planning system in Ireland”(Irish Planning Institute, 2019: 3). From this, accountability became procedural and was no longer democratic as local representatives could no longer influence the outcomes.

Additionally, the literature highlights a growing reliance on the judicial review (JR) process as an alternative form of accountability under SHDs. It is a process “in which a citizen or group of citizens can challenge decisions made by government to ensure that they have been made lawfully”(Wall and Elliott, 2024). JR rates increased rapidly during SHDs as they were used to appeal a decision due to local authorities being removed from the decision-making process (Edgeworth, 2021). However, it is evident that JR applications are a limited substitute for

democratic accountability, as they are expensive and time-consuming. Hearne (2021: 110) argues that contemporary housing policy risks a return “to the tenements of the 19th century”, at the expense of deliberative planning processes. This reliance on legal mechanisms to facilitate housing delivery reflects a shift away from participatory and politically accountable planning, prioritising efficiency over democratic engagement.

Nonetheless, the literature also raises questions regarding public participation under the SHD process. It is evident that formal opportunities existed, however they were constrained by timelines and limited public engagement (Mason Hayes & Curran, 2021). This transformative shift away from public engagement through local authorities “has led to an emphasis on private-sector participation and profitability, resulting in diminished public influence over urban planning and altering the nature of urban development planning”(Yang et al., 2024: 9). These conditions align more closely with consultative or tokenistic participation rather than genuine influence, as Arnstein (1969: 217) states “when participation is restricted to these levels, there is no follow through, no muscle, hence no assurance of changing the status quo”. This notably reinforces concerns about exclusion and procedural inequality.

Overall, the SHD process is characterised in the literature as centralised and technocratic in nature. It was designed to enhance delivery and efficiency, but led to a decline of democratic accountability and public participation in the planning process. Likewise, political oversight was weakened, participation was constrained, and JR became a substitute for democratic accountability. However, much of the existing literature focuses on design, structure, and critique, with limited analysis of how accountability and participation operated in practice across individual SHD cases. The following section examines this limitation.

2.5 Gap in Research –

The existing literature provides a strong foundation for understanding the SHD process as a centralised and technocratic planning reform introduced in response to Ireland's housing crisis. The SHD process has been critically examined by a number of scholars in relation to reducing public participation and weakening political accountability.

However, significant gaps remain within this research. The literature adopts a normative, legal, or policy-focused perspective, which emphasises institutional critique and judicial review outcomes. While these analyses are important, they often address public participation and democratic accountability in abstract terms. They tend to overlook empirical evidence of these principles in practice within individual SHD cases. In particular, there is a lack of comparative, case-based research examining how variations in participation, accountability, and decision-making processes shaped planning outcomes.

This dissertation addresses these gaps by adopting a qualitative comparative case study approach to examine why the SHD process affected democratic engagement in practice, focusing on the operation of democratic accountability and public participation. Through analysis of planning decisions, public submissions, and a judicial review judgement, this dissertation provides insight into how variations in participation, accountability, and decision-making processes shaped planning outcomes. In doing so, it contributes to a more grounded understanding of the operation of democracy within Ireland's fast-track planning system. Accordingly, this research is guided by the following research question: why did the SHD process affect democratic engagement in Ireland's planning of large-scale residential

developments between 2016 and 2022? The following chapter outlines the research design and methodology used to address this question.

Chapter 3 – Methodology

3.0 Introduction –

This chapter outlines the methodological approach used to examine why the SHD process affected democratic engagement in Ireland’s planning of large-scale residential developments between 2016 and 2022. It details the research design, case selection criteria, documentary data collection, thematic coding framework, and the key limitations.

3.1 Research Design –

This dissertation adopts a qualitative comparative case study design. A qualitative approach is appropriate because the research seeks to explain governance processes and institutional reasoning rather than quantitative housing delivery outcomes. As Pierce (2008) notes, case study research enables in-depth analysis of complex policy processes within their real-world context.

Democratic engagement is the central theoretical concept underpinning this study. It is examined through two dimensions known as democratic accountability and public participation. The analysis explores how democratic engagement functioned under the SHD

process by considering governance structure and planning outcomes as explanatory mechanisms shaping the conditions in which engagement operated.

3.2 Case Selection –

Two SHD cases were selected using purposive sampling (Tajik et al., 2024). The first case chosen was Castlelands SHD, Balbriggan, Co. Dublin, (ABP-313210-22), and the second was Taylors Lane SHD, Ballyboden, Dublin 16, (ABP-307222-20). Both cases were determined under the Planning and Development (Housing) and Residential Tenancies Act 2016 and met the statutory qualifying requirements for large-scale residential developments under the SHD process.

The selection criteria are shown in *Figure 3*. The cases were chosen as they operate under the same statutory framework, provide full public documentation, include third-party submissions, contain Chief Executive reports from relevant local authorities, and demonstrate accountability mechanisms. Taylors Lane SHD additionally involved a High Court Judicial Review, allowing examination of judicial accountability alongside procedural oversight.

Figure 3: Case Selection Criteria

Selection Criteria	Rationale for Inclusion	Castlelands SHD (ABP-313210-22)	Taylor's Lane SHD (ABP-307222-20)
Operated under the Strategic Housing Development (SHD) Framework (Planning and Development (Housing) and Residential Tenancies Act 2016)	Ensures both cases are governed by the same statutory fast-track planning framework, allowing structural comparison	Yes	Yes
Large-Scale Residential Development	Ensures comparability in development scale and policy significance within the statutory qualifying requirements of the SHD framework	817 residential units	496 residential units
Full Public Documentation Available (Inspector's Report, Board Order, Board Direction)	Required for systematic documentary analysis of decision-making processes, participation, and accountability mechanisms	Complete documentation available	Complete documentation available
Evidence of documented public participation (third-party submissions)	Enables analysis of the scale, nature, and influence of formal public participation under the SHD framework	11 submissions formally recorded	76 submissions formally recorded
Chief Executive's Report from the relevant local authority	Allows examination of the advisory (non-determinative) role of local authorities within the centralised SHD process	Included (Fingal County Council)	Included (South Dublin County Council)
Evidence of Accountability Mechanisms	Allows examination of procedural and/or judicial oversight within the SHD framework	Procedural accountability through conditions	Procedural accountability + High Court Judicial Review

Note. Chart created by author based on data from An Bord Pleanála (2020; 2023), Case details 313210 and Case details 307222.

The criteria identified ensure structural comparability while allowing variation in the level of participation and accountability outcomes.

3.3 Data Collection –

The data used in this dissertation was drawn exclusively from publicly available sources. Seven primary documents were analysed. For each case, the Inspector's Report, Board Order, and Board Direction were examined (six documents in total). In addition, the High Court judgement

in the Taylors Lane case was analysed to examine judicial review as a mechanism of accountability within the SHD framework.

These documents contain a formal record of third-party submissions, statutory roles, planning assessments, and the final reasoning underpinning each decision.

3.4 Data Analysis –

Thematic coding was used to analyse the data collected. Deductive themes drawn from the literature review, including accountability, participation, transparency, and centralisation, were combined with inductive themes that emerged during analysis (Jones, 2022). An initial open-coding phase occurred when analysing the Castlelands SHD, extracting material relating to these themes. This generated an extensive dataset, so extracts were refined by removing repetition and retaining analytically relevant passages.

A thematic codebook was then created and applied across both cases. The framework consisted of four themes including democratic accountability, public participation, governance structure, and planning outcomes. The coding framework is presented in *Figure 4*, with full definitions and applied extracts provided in Appendix A. Each case was analysed individually before being compared through cross-case analysis to identify similarities and differences, which are presented in Chapter 6 (Table 6.1).

Figure 4: SHD Thematic Code Framework

CODE CHART – Theme Definitions			
Code	Main Theme	Sub-Theme	Explanation
A1	Democratic Accountability	Transparency	Openness of decision-making, availability of reports, publication of inspector findings.
A2	Democratic Accountability	Justification / Reason-Giving	Evidence of reasons provided for decisions and responses to submissions.
A3	Democratic Accountability	Oversight and Review	Mechanisms of scrutiny such as inspector review, appeals, and procedural checks.
A4	Democratic Accountability	Judicial Review as Accountability	Use of judicial review as a mechanism to challenge decisions.
B1	Public Participation	Formal Participation	Statutory participation mechanisms such as written submissions and consultation periods.
B2	Public Participation	Tokenism	Participation acknowledged but with little or no influence on outcomes.
B3	Public Participation	Meaningful Participation	Participation that influenced decision-making or led to modification.
B4	Public Participation	Barriers to Participation	Constraints such as time limits, technical language, cost, or legal complexity.
C1	Governance Structure	Centralisation	Shift of decision-making power from local authorities to central bodies.
C2	Governance Structure	Technocratic Decision-Making	Reliance on expert assessment and regulatory compliance over political input.
C3	Governance Structure	Removal of Local Authority Role	Reduction of elected councillor involvement in decision-making.
D1	Planning Outcomes	Efficiency and Delivery	References to speed, certainty, and housing delivery targets.

Note. Chart created by author based on data from An Bord Pleanála (2020; 2023), Case details 313210 and Case details 307222.

3.5 Ethical Considerations and Limitations –

Ethical risk was minimal, as all material analysed was publicly accessible and no interviews were conducted. Where personal names appeared in submissions, they were redacted in the analysis (Mirza et al., 2023). Limitations include reliance on publicly accessible information and the absence of interviews, which restricts insight into lived experiences. Additionally, the focus on two cases limits generalisability but enables detailed comparison capable of revealing meaningful patterns in governance processes (Sehring et al., 2013).

Chapter 4 – Case Study 1: Castlelands SHD (Balbriggan)

4.0 Introduction –

This chapter presents the findings of the Castlelands SHD in Balbriggan, County Dublin. The proposal was submitted to ABP under “section 4(1) of the Planning and Development (Housing) and Residential Tenancies Act 2016”(An Bord Pleanála, 2023a: 4). The findings are organised according to the thematic coding framework outlined in Chapter 3 which includes public participation, democratic accountability, and governance structures. The analysis is based on primary planning documentation including the Inspector’s Report, Board Direction, and the Planning Authority Chief Executive’s Report. Detailed coded extracts are provided in Appendix A to ensure transparency and traceability. This chapter presents an in-depth analysis of the case findings. Comparative discussion and explanatory analysis will take place in Chapter 6.

4.1 Development Overview –

The Castlelands SHD was a large-scale residential development which proposed a ten-year planning permission for the construction of 817 residential units on a site of 25.33 hectares, approximately 1km south of Balbriggan town (An Bord Pleanála, 2023a). The proposed plan included “162 no. 1-bed units, 250 no. 2-bed units, 381 no. 3-bed units, and 24 no. 4 bed houses ranging in height from 1-6 storeys”(An Bord Pleanála, 2023a: 4). The development also

included a crèche, retail and office units, internal road networks, 1,033 car parking spaces, 1,092 bicycle spaces, and 2.16 hectares of public open space (An Bord Pleanála, 2023a).

A “Section 5 Pre-Application Consultation took place at the offices of ABP on the 13th of May 2020”(An Bord Pleanála, 2023a: 10). The SHD application was formally lodged on the 4th April 2022. Although the SHD process formally expired on the 25th February 2022, transitional provisions permitted applications to be lodged after that date where a valid pre-application consultation opinion had been issued prior to expiry (Office of the Planning Regulator, 2021).

Additionally, Fingal County Council submitted a Chief Executive’s Report in accordance with the statutory requirements. The Board granted permission subject to conditions on the 16th March 2023 (An Bord Pleanála, 2023b). The decision was accompanied by an Inspector’s Report and Board Direction detailing the assessment process and reasoning.

4.2 Public Participation –

4.2.1 Scale of Participation

There were a total of eleven third-party submissions received during the statutory consultation period (An Bord Pleanála, 2023a). These submissions were made by local residents,

community groups, elected representatives, and a Teachta Dála. The Inspector's Report summarised and recorded each submission.

Considering the size of the development, which consisted of 817 units, eleven submissions represent a limited level of formal participation. Nonetheless, participation occurred within the statutory SHD framework, which required submissions to be made directly to ABP within a specific timeframe.

4.2.2 Nature of Submissions

The Inspector grouped the objections thematically. Key issues raised included:

- Alleged excessive density and building height
- Non-compliance with the Castlelands Masterplan
- Traffic congestion and infrastructure capacity
- Limited public open space
- School provision and social infrastructure
- Ecological impacts including curlew present on site
- Potential material contravention of the Fingal Development Plan

(An Bord Pleanála, 2023a: 27)

In addition, several submissions argued that the proposal represented overdevelopment of the site and would place massive pressure on existing infrastructure. Others questioned the impact on coastal views and the capacity of local services. The Planning Authority submission raised concerns regarding compliance with the Development Plan standards, open space provision, and infrastructure phasing.

4.2.3 Assessment and Response to Submissions

The Inspector addressed the issues raised under various assessment headings. The Sustainable Residential Development Guidelines 2009 suggested that outer suburban sites should have 35-50 units per hectare (An Bord Pleanála, 2023a). This raised concerns regarding the development's density. However, the proposed density of 43.8 units per hectare was found to fall within this range (An Bord Pleanála, 2023a). Moreover, in relation to the Masterplan, the Inspector noted that the proposal exceeded the proposed 650-unit reference but remained compliant with the density parameters set out in the plan (An Bord Pleanála, 2023a).

Traffic concerns were assessed through the submitted Traffic and Transport Assessment, with the Inspector concluding that the “proposal would be satisfactory in the context of traffic impact with the existing road networks and proposed traffic layout operating within capacity”(An Bord Pleanála, 2023a: 69). Additionally, the provision of open space was found to be below the Development Plan standards. However, a financial contribution in lieu was considered acceptable (An Bord Pleanála, 2023a).

Finally, the Board granted permission subject to conditions. Condition 5 stated that “the development shall be carried out in accordance with the phasing programme specified and no dwellings shall be occupied until the entirety of Castlelands Link Street is provided including the bridge over the rail line and the junction access to the R127”(An Bord Pleanála, 2023a: 138). This condition addressed infrastructure concerns while retaining the overall scale of the development. The overall scale of 817 units and the proposed density were not reduced.

4.3 Democratic Accountability –

4.3.1 Transparency and Reason-Giving

The Inspector’s Report is 151 pages long and follows a structured assessment format, including sections on planning history, relevant planning policy, third-party submissions, and detailed evaluations. Objections were addressed under defined headings, with reference to national, regional, and local planning policy, including the National Planning Framework and the Fingal Development Plan.

In relation to potential material contravention, the Inspector noted that “none of the eight issues identified as possible material contraventions of the County Development Plan are material contraventions and I would not recommend that the Board invoke the provisions of section 37(2)(b) of the Planning and Development Act, 2000”(An Bord Pleanála, 2023a: 86). The reasoning process was articulated through reference to the statutory requirements.

The Board's Direction adopted the Inspector's recommendation and set out formal reasons and considerations supporting the decision (An Bord Pleanála, 2023b). The Inspector's Report is publicly accessible and contributes to procedural transparency.

4.3.2 Oversight and Regulatory Mechanisms

Oversight occurred through statutory assessment and conditional approval rather than through local political determination. Fingal County Council's role was advisory, limited to submission of the Chief Executive's Report. Final decision-making notably rested with ABP.

Condition 3 required the developer to enter into a Section 47 agreement which restricts first occupation of houses and duplex units to individual purchasers or eligible social and affordable occupants (An Bord Pleanála, 2023a). This condition shows that regulatory oversight mechanisms are embedded within the SHD framework to secure housing policy objectives.

The implementation of conditions relating to infrastructure, phasing, and housing tenure reveals that accountability operated through structured regulatory controls. Nonetheless, the overall size and density of the development was maintained.

4.4 Governance Structure –

The Castlelands SHD application was determined directly by ABP without a prior local authority decision-making stage. The Planning Authority submission and elected member observations were recorded and assessed but were not determinative of the final outcome. The Inspector evaluated the proposal primarily by reference to national planning policy and statutory guidelines (An Bord Pleanála, 2023a). Accordingly, the decision-making process was structured around policy compliance and technical assessment rather than local political consideration. Authority rested with ABP, with the decision justified through reference to statutory planning objectives and compliance with national planning frameworks.

4.5 Key Finding: Centralised Decision-Making and Limited Participatory Influence –

The Castlelands SHD demonstrates that participation occurred in a largely consultative manner, with limited influence on outcomes, as objections were addressed through policy-based reasoning while decision-making remained centralised in ABP. Although procedural transparency and regulatory oversight were evident, public and local authority input did not significantly influence the outcome, as the scale and density of the development remained unchanged. This pattern is further examined in the Taylors Lane SHD before cross-case comparison in Chapter 6.

Chapter 5 – Case Study 2: Taylors Lane SHD (Ballyboden)

5.0 Introduction –

This chapter presents the findings of the Taylors Lane SHD in Ballyboden, Dublin 16. The proposal was submitted to ABP under “section 4(1) of the Planning and Development (Housing) and Residential Tenancies Act 2016”(An Bord Pleanála, 2020a: 4). The findings are organised according to the thematic coding framework outlined in Chapter 3, which includes public participation, democratic accountability, and governance structure. The analysis is based on primary planning documentation including the Inspector’s Report, Board Direction, and the Planning Authority Chief Executive’s Report. Detailed coded extracts are provided in Appendix A to ensure transparency and traceability. This chapter presents an in-depth analysis of the case findings. Cross-case comparison and explanatory analysis will occur in Chapter 6.

5.1 Development Overview –

The Taylors Lane SHD consisted of a proposal to demolish “existing former institutional buildings and associated outbuildings”(An Bord Pleanála, 2020a: 5). This allowed for the construction of 496 residential units on a site of 3.8 hectares in Ballyboden, Dublin 16 (An Bord Pleanála, 2020a: 5). The proposed development consisted of 3 apartment/duplex blocks ranging in height from 2-7 storeys, “comprising of 36 no. 1-Bed; 391 no. 2-Beds; and 69 no. 3-Beds”(An Bord Pleanála, 2020a: 5). The proposed density was 141.7 units per hectare.

Additionally, the development included 372 car parking spaces, 1,144 bicycle spaces, a crèche, two retail units, 5,400 sq. m. of public open space, and 3,675 sq. m. of communal space (An Bord Pleanála, 2020a: 5-6).

A Section 5 “pre-application consultation with the applicants and the planning authority took place at the offices of An Bord Pleanála on 15th January 2020 in respect of a proposed development of 514 no. apartments, creche, and all associated site work”(An Bord Pleanála, 2020a: 7). ABP issued a pre-application consultation opinion requiring further consideration in relation to density, height, and parking provision. The application was notably lodged through the SHD process.

South Dublin County Council submitted a Planning Authority report recommending refusal on grounds relating to excessive density, building height, biodiversity loss, and unsustainable development (An Bord Pleanála, 2020a: 34-35). Despite this recommendation, ABP granted permission on the 14th September 2020 subject to conditions (An Bord Pleanála, 2020b: 3).

5.2 Public Participation –

5.2.1 Scale of Participation

There were a total of seventy-six third-party submissions received during the statutory consultation period (An Bord Pleanála, 2020a: 16). The submissions were received from local residents, community groups, elected members, and prescribed bodies. The Inspector's Report summarised and recorded each submission.

Considering the size of the development, which consisted of 496 residential units, seventy-six submissions represent a substantial level of formal participation which occurred under the SHD framework, requiring submissions to be made directly to ABP within a specific timeframe.

5.2.2 Nature of Submissions

The Inspector grouped the third-party objections thematically. The main issues raised included:

- Excessive density and overdevelopment
- Inappropriate building height
- Material contravention of the South Dublin County Development Plan

- Traffic congestion and inadequate public transport
- Loss of trees and biodiversity
- Flooding and drainage concerns
- Impact on nearby protected structures
- School capacity and social infrastructure
- Criticism of the SHD process due to issues such as no consultation with residents or community groups

(An Bord Pleanála, 2020a: 16-27)

In addition, the Planning Authority recommended refusal on the basis of “density, loss of biodiversity, height in general, and height around periphery”(An Bord Pleanála, 2020a: 33). It is also noted that elected members raised concerns regarding traffic, density, environmental impact, and the SHD process (An Bord Pleanála, 2020a: 35-37).

5.2.3 Assessment and Response to Submissions

The Inspector structured the assessment under thematic headings, including density, building height, traffic and transport, ecology, and material contravention, corresponding to the issues raised in the third-party submissions (An Bord Pleanála, 2020a).

In relation to density, reference was made to the Sustainable Residential Development in Urban Areas – Guidelines for Planning Authorities 2009, which noted that “institutional sites are recommended as being suitable for residential densities of 35-50 D/Ha, provided in pockets of higher density development (70 Dw/Ha), allowing for the retention of significant open spaces as part of their development”(An Bord Pleanála, 2020a: 29). The proposed net density of 141.7 units per hectare significantly exceeded this range.

However, the Inspector evaluated the proposal by taking into account more recent national planning policies, such as the National Planning Framework and Section 28 Ministerial Guidelines such as the Sustainable Urban Housing: Design Standards for New Apartments 2018 (An Bord Pleanála, 2020a: 13-14). Ultimately, the site’s location and national compact growth objectives were given higher priority than the 2009 recommended requirements. Permission was granted, with the Inspector stating that “it is my view that, given the above factors, and having regard to national and regional policy as relates to density, the density of 141.7 unit/ha is not excessive”(An Bord Pleanála, 2020a: 67).

Additionally, there were concerns regarding building height which were assessed with reference to the Urban Development and Building Height Guidelines 2018. The Inspector concluded that the proposal complied with national policy objectives supporting increased height in appropriate urban locations (An Bord Pleanála, 2020a).

Traffic concerns were assessed through the submitted Traffic and Transport Assessment. Condition 4 required upgrades to junctions, cycle infrastructure, and a Mobility Management Plan must be completed within six months of the opening of the proposed development (An

Bord Pleanála, 2020b: 11-12). The reasons provided for the above are in the interests of cyclists, pedestrians, traffic, and the protection of residential amenity.

Ecological concerns were addressed through mitigation measures outlined in the Environmental Impact Assessment Report. Condition 2 states that “the developer shall submit a schedule of mitigation measures and monitoring commitments” to the Planning Authority for written agreement (An Bord Pleanála, 2020b: 10).

Overall, the Planning Authority recommended refusal, however the Board granted permission subject to 26 conditions. The proposed density and the proposal’s overall size of 496 units were retained. This demonstrates the prioritisation of the national compact growth policy over local development plan standards within the SHD framework.

5.3 Democratic Accountability –

5.3.1 Transparency and Reason-Giving

The Inspector’s Report is 103 pages long and follows a structured assessment format, including sections on planning history, relevant planning policy, third-party submissions, and detailed evaluation. Objections were addressed under defined headings with reference to national,

regional, and local planning policy, including the National Planning Framework and the South Dublin County Development Plan.

In relation to material contravention, the Inspector considered if the proposal conflicted with local planning policies on density and height. The Inspector came to his conclusion through reference to statutory requirements and national planning policy objectives (An Bord Pleanála, 2020a: 71-74).

Furthermore, the Board's Direction adopted the Inspector's recommendations and drafted a set of formal reasons and considerations to support their decision (An Bord Pleanála, 2020b). The Inspector's Report is publicly accessible and contributes to procedural transparency.

5.3.2 Oversight and Regulatory Mechanisms

Oversight took place through assessment and conditional approval rather than through local political determination. South Dublin County Council's role was advisory, as it submitted a Chief Executive's Report recommending refusal (An Bord Pleanála, 2020a: 33). Final decision-making authority ultimately rested with ABP.

Permission was granted subject to a series of conditions, including requirements relating to infrastructure, tree protection, sustainable drainage systems, mobility management,

environmental mitigation, Part V social housing provision, and financial contributions (An Bord Pleanála, 2020b). These conditions demonstrate that regulatory oversight operated through technical compliance and structured planning controls.

Moreover, local authority decision-making was removed under the SHD framework. A decision could only be challenged through a procedure called judicial review, which was conducted before the High Court. Judicial review does not reassess the planning merits of a development, but instead examines whether the decision-making process complied with legal and procedural requirements (Citizens Information, 2025).

Accordingly, accountability within the SHD process operated primarily through statutory procedure and legal oversight rather than through local representative decision-making. Despite the Planning Authority's recommendation for refusal and significant public opposition, the overall size and density of the development was retained. The retention of the proposed density despite formal opposition illustrates the limited influence of local democratic actors under the SHD process.

5.4 Governance Structure –

The Taylors Lane SHD application did not go through a local authority decision-making stage, but instead went directly to ABP. It is noted that the Planning Authority submission and elected member observations were recorded and assessed but did not determine the final outcome.

The Inspector evaluated the proposal with reference to national planning policy and statutory guidelines (An Bord Pleanála, 2020a). The decision-making process was ultimately structured around policy compliance and technical assessment rather than local political consideration. Authority therefore rested with ABP and legitimacy was determined through reference to statutory objectives and compliance with national planning frameworks.

5.5 Key Finding: Centralised Decision-Making Despite High Levels of Participation –

The Taylors Lane SHD demonstrates that despite a high level of participation and opposition, engagement operated in a largely consultative manner with limited influence on outcomes, as objections were addressed through policy-based reasoning while decision-making remained centralised in ABP. Although procedural transparency and regulatory oversight were evident, neither public submissions nor the Planning Authority's recommendation for refusal significantly altered the outcome, with the scale and density of the development remaining unchanged. This pattern is further examined in comparison with the Castlelands SHD in Chapter 6.

Chapter 6 – Data Analysis and Discussion

6.0 Introduction –

This chapter directly addresses the research question: why did the SHD process affect democratic engagement in Ireland’s planning of large-scale residential developments between 2016 and 2022.

Chapter 4 and 5 presented detailed findings of the Castlelands and Taylors Lane SHD. This chapter moves from description to explanation through cross-case comparison. Table 6.1 summarises the main similarities and differences between the two cases and identifies three recurring patterns known as participation without determinative influence, centralisation of decision-making authority, and finally, the prioritisation of national housing policy over local planning standards. When examined together, these patterns explain how the SHD framework reshaped democratic engagement during its time in operation.

Table 6.1

Cross-Case Thematic Comparison of Democratic Engagement under the SHD Framework

Analytical Theme	Castlelands SHD (Balbriggan)	Taylors Lane SHD (Ballyboden)	Cross-Case Insight
Scale of Public Participation (B1)	11 third-party submissions formally received and summarised in the Inspector's Report.	76 third-party submissions formally received and summarised.	The volume of participation differs, but formal acknowledgement operates similarly in both cases.
Influence of Participation (B2/B2)	Submissions were documented but there was no clear evidence of influence on the final decision. Requests for refusal did not alter the outcome.	Explicit calls for refusal and density reduction recorded but approval granted anyways.	Participation is procedural rather than deliberative in both cases.
Barriers to Participation (B4)	The assessment was dominated by technical issues (traffic, emergency services, environment) which reduced the influence of non-expert submissions.	Key issues relating to density, transport capacity, and policy compliance were framed as technical matters, evaluated through professional expertise rather than public deliberation.	The requirement of having expert knowledge constrained meaningful participation across both cases.
Decision-Making Authority (C1)	The final decision was issued by An Bord Pleanála, bypassing local authority decision-making.	The final decision was also issued by An Bord Pleanála.	The planning authority is very centralised under the SHD process in both cases.
Role of Local Authorities (C3)	The Chief Executive's Report and elected members' views were treated as advisory.	The local authority South Dublin County Council recommended refusal, but decisions proceeded regardless.	Both situations resulted in the exclusion of local democratic institutions.
Basis of Decision-Making (C2)	Decisions were justified through expert reports, national policy, and regulatory compliance.	There was a heavy reliance on national policy (e.g. Rebuilding Ireland).	Technocratic decision-making dominates across both cases.
Reason-Giving (A2)	The Inspector and Board provided detailed planning justifications and conditions.	The Inspector and Board provided justifications based on assessment and policy.	Legitimacy was constructed through formal reason-giving rather than public deliberation.
Accountability Mechanisms (A3)	Accountability was exercised through enforceable planning conditions and delivery requirements.	Similar reliance on conditions, time limits, and mitigation measures.	Accountability is procedural and internal to the planning system.
Judicial Review (A4)	No judicial review recorded.	Decision quashed by High Court following judicial review.	The courts serve as an external corrective tool in situations where planning-based accountability fails.
Overall Democratic Engagement	Participation was clearly present but weak. Authority was centralised and accountability was procedural.	Same structural pattern, but with judicial review exposing the weaknesses in decision-making.	The SHD process has systematically constrained democratic engagement regardless of local context.

Note. Chart created by author based on data from An Bord Pleanála (2020; 2023), Case details 313210 and Case details 307222.

This cross-case examination illustrates that while public opposition varied, the institutional framework for decision-making remained the same. It is clear that authority was centralised in

ABP, while local authorities operated in an advisory role. Decisions were justified primarily through alignment with national policy and technical assessment. The analysis that follows is structured around these recurring patterns.

6.1 Participation and Influence –

The first structural pattern examined looks at the relationship between participation and influence. Castlelands SHD recorded a “total of eleven third party submissions”(An Bord Pleanála, 2023a: 25). However, Taylors Lane generated seventy-six submissions (An Bord Pleanála, 2020a). This indicates significant variation in the level of public engagement between both cases.

Nevertheless, participation did not alter outcomes in either case. Castlelands objections were documented and assessed but did not have influence over the final proposal. Likewise, Taylors Lane SHD attracted a substantial amount of opposition and even had a formal recommendation for refusal from South Dublin County Council, on the basis that “the proposed development would risk being car dependent” and that the density constituted grounds for refusal (An Bord Pleanála, 2020a: 29). Despite this, the proposed density was retained and South Dublin County Council’s recommendation had no direct impact on the outcome. Participation therefore operated in a consultative rather than determinative manner. Submissions shaped the structure of the Inspector’s assessment and influenced mitigation measures, but had no control over the final decision.

Moreover, the planning assessment in both cases was controlled by technical considerations such as policy compliance, environmental measures, and traffic layout plans (An Bord Pleanála, 2020a: 63-64; An Bord Pleanála, 2023a: 38). This technocratic reliance reduced the influence of non-expert submissions and allowed the proposal to be focused on professional expertise. These cases reveal how democratic engagement was structured within a highly regulated institutional environment that limited the influence of public participation. The SHD framework did not remove participation but limited its ability to influence development outcomes.

6.2 Centralisation of Authority –

The second mechanism is the centralisation of decision-making authority. In both cases, the final decision was granted directly by ABP, bypassing the local authority determination stage (An Bord Pleanála, 2020a: 84; An Bord Pleanála, 2023a: 131). Although local authorities submitted a Chief Executive's Report and elected member observations, these submissions were only advisory. In Taylors Lane SHD, South Dublin County Council formally recommended refusal, however permission was still granted. This illustrates the removal of determinative authority from locally elected representatives.

Under the traditional planning system, local authorities “control the location, amount, and type of development by making decisions on planning applications”(Office of the Planning Regulator, 2026). They acted as the primary decision-makers, with ABP functioning as an

independent body operating an open and impartial planning appeal system (Citizens Information, 2025). The SHD framework reversed this structure for qualifying large-scale developments by positioning ABP as the first instance decision-maker, thereby centralising authority at national level. This shift is evident in the reasoning underpinning both decisions, which were justified through expert reports and alignment with national policy objectives. It is clear that technocratic evaluation also dominated both cases. Democratic authority was therefore relocated from local representative deliberation to national statutory assessment.

Overall, the centralisation of authority under the SHD framework restructured democratic engagement by limiting the direct influence of local democratic actors in shaping large-scale residential development.

6.3 Prioritisation of National Policy –

A third structural feature was the prioritisation of national housing policy over local development plan requirements. In both cases, Inspectors relied heavily on national planning frameworks and Section 28 Ministerial Guidelines when assessing density and compliance. This is significant as the Planning and Development Act 2000 (as amended) notes that the Board is prevented from granting permission that constitutes a material contravention of a development plan, except under certain circumstances. One circumstance allows approval where “permission for the proposed development should be granted having regard to regional planning guidelines of the area, guidelines under section 28, policy directives under section 29,

the statutory obligations of any local authority in the area and any relevant government policy”(An Bord Pleanála, 2020a: 72).

The Taylors Lane SHD exceeded the proposed density guidelines but was justified through reference to national compact growth objectives and updated apartment standards. The Inspector explicitly stated that “having regard to national and regional policy as relates to density, the density of 141.7 unit/ha is not excessive”(An Bord Pleanála, 2020a: 67). Similarly, in the Castlelands SHD, issues regarding material contravention and compliance were resolved through statutory interpretation aligned with national policy frameworks. Consequently, a hierarchical policy structure emerged in which centrally defined growth targets outweighed locally adopted planning standards.

Democratic engagement was therefore reshaped through this new policy structure. Legitimacy was constructed through statutory reasoning and alignment with national objectives rather than through local representative deliberation.

6.4 Accountability and Judicial Review –

The SHD framework centralised authority by bypassing the local authority determination stage. Nonetheless, accountability mechanisms remained in place. Both cases demonstrate the presence of detailed Inspector Reports, enforceable planning conditions, and structured regulatory oversight. However, accountability primarily operated in procedural and legal form

rather than through representative political mechanisms. The SHD process removed the stage that traditionally allowed for public deliberation and eliminated the right of third-party appeal. The only available method to challenge a decision was through judicial review before the High Court.

Judicial review examines the legality of the decision-making process rather than the planning merits of a proposal. Therefore, it functions as a legal safeguard rather than a mechanism for revisiting significant planning judgements (Citizens Information, 2025). Accordingly, accountability under the SHD process was reshaped as procedural transparency and statutory compliance rather than representative political oversight. This shift towards judicial review narrowed the channels through which citizens could contest development outcomes and consequently limited the overall scope of democratic engagement within the planning process.

6.5 Why the SHD Process Affected Democratic Engagement (2016-2022) –

The cross-case analysis presented in *Table 6.1* demonstrates that the SHD process affected democratic engagement through structural institutional reform rather than through democratic exclusion. Firstly, formal participation remained possible, but only in a consultative form. Submissions were documented and assessed, however they did not have determinative influence over development outcomes. Secondly, decision-making authority was centralised within ABP. This removed the determinative role of local elected representatives and relocated authority to national level.

In addition, national housing policy objectives were prioritised over locally adopted development plans. This created a hierarchical policy framework that reduced local planning autonomy to increase delivery targets. Finally, accountability operated primarily through procedural transparency and judicial oversight rather than through representative political control.

Between 2016 and 2022, the SHD framework reshaped democratic engagement around centralisation, technocratic assessment, and policy alignment. Nevertheless, democratic mechanisms were not eliminated, but were reconstructed in a form that prioritised housing delivery and national policy over local democratic influence within Ireland's planning system.

Chapter 7 – Conclusion

7.0 Introduction –

This dissertation examined why the SHD process affected democratic engagement in Ireland's planning of large-scale residential developments between 2016 and 2022. The SHD framework was introduced as part of the Government's response to Ireland's housing crisis and sought to accelerate housing delivery by bypassing the local authority determination stage and proceeding directly to ABP. This reform aimed to increase housing supply and streamline planning procedures, however it raised concerns regarding democratic accountability and public participation within Ireland's planning system. Through a qualitative comparative case study of the Castlelands and Taylors Lane SHD, this research examined how the institutional design of the SHD process reshaped democratic engagement in practice.

7.1 Summary of Key Findings –

The main findings reveal that the SHD framework did not remove democratic engagement but ultimately restructured the way it operated. Four key findings are outlined below.

7.1.1 Finding 1 – Participation Without Influence

Firstly, public participation remained formally available through the statutory submission process. The public could submit observations based on the proposal which were then recorded and assessed within the Inspector's Report. However, participation primarily operated in a consultative rather than determinative manner. While submissions shaped the structure of the planning assessment and sometimes contributed to mitigation measures and planning conditions, it is evident that they did not significantly alter the scale or density of the proposed developments.

7.1.2 Finding 2 – Centralisation of Authority

Secondly, the findings indicate that decision-making authority became centralised within ABP. Under the traditional planning system, local authorities were the primary decision-making bodies in relation to planning applications. ABP was an independent appeals body (Citizens Information, 2025). However, the SHD framework reversed this institutional arrangement and positioned ABP as the first instance decision-maker for qualifying large-scale residential developments. It is noted that local authorities continued to submit Chief Executive Reports and elected member observations, but these submissions were advisory rather than determinative as they previously had been. This is evident in Taylors Lane SHD as South Dublin County Council issued a recommendation for refusal but this did not prevent the development from being granted permission (An Bord Pleanála, 2020a: 33).

7.1.3 Finding 3 – National Policy Priority

A third key finding relates to the prioritisation of national housing policy objectives over locally adopted development plans. In both Castlelands and Taylors Lane SHD, Inspectors relied heavily on national planning frameworks and Section 28 Ministerial Guidelines when assessing issues such as density, building height, and policy compliance (An Bord Pleanála, 2020a: 65-71; An Bord Pleanála, 2023a: 42-48). Consequently, the SHD process allowed national housing delivery objectives to take precedence over locally adopted development plans. This created a hierarchical planning structure where housing targets and national policy objectives were prioritised over local planning standards.

7.1.4 Finding 4 – Procedural Accountability and Judicial Review

The research found that accountability under the SHD framework operated mainly through procedural and legal mechanisms rather than through representative political oversight. Transparency was evident through Inspector Reports, publicly available documentation, and enforceable planning conditions. However, the removal of the local authority decision-making stage also removed third-party appeals that existed within the traditional Irish planning system. Consequently, the only available method to challenge a planning decision under the new framework was through judicial review before the High Court. As judicial review is “primarily concerned with the decision-making process rather than with the substance of the decision”, it is evident that accountability was therefore reshaped as procedural transparency and legal

oversight rather than a mechanism for democratic reconsideration (Citizens Information, 2025).

Finally, these findings address a clear gap in the existing research. Previous studies have mainly focused on the legal and procedural aspects of the SHD framework. However, less attention has been given to how the process operated in practice. This dissertation addresses that gap through a comparative case study approach. It demonstrates how the institutional design of the SHD process shaped democratic engagement in real decision-making contexts. The findings show that participation and accountability remained present, while their influence was limited within a centralised and policy-led system.

7.2 Implications for Democratic Engagement –

The findings demonstrate that the SHD framework reshaped democratic engagement through structural institutional reform rather than through the complete removal of democratic processes. Participation was possible, but its influence was limited. Decision-making authority was centralised at national level, national policy objectives were prioritised over local planning standards, and accountability mechanisms shifted towards procedural legality.

Overall, democratic engagement continued to exist within the planning system, but it was reorganised around technocratic evaluation, statutory interpretation, and national policy alignment. These findings illustrate the ongoing tension within the Irish planning system

between the need for efficient housing delivery and the preservation of meaningful democratic participation in development decisions. It is apparent that the SHD framework sought to accelerate housing delivery during the early stages of a housing crisis, however it did so by altering the balance between national planning priorities and local democratic influence.

7.3 Limitations of the Study –

There are a number of limitations to this dissertation. The research focused on two case studies and relied heavily on documentary analysis of planning reports and decisions. This approach allowed for detailed examination of institutional decision-making processes, however a larger sample of SHDs as well as interviews with planners, elected representatives, and community stakeholders, could provide additional insight into how the SHD framework operated in practice. This may also provide insights into the perspectives of key actors on the changes to democratic engagement from the SHD process.

7.4 Future Research and Broader Governance Implications –

Future research on why the SHD process affected democratic engagement in Ireland's planning of large-scale residential developments between 2016 and 2022 could examine the planning reforms that replaced the SHD process. The new framework is known as the Large-Scale

Residential Development (LRD) process, introduced in 2021 to restore “the two-stage planning process, with decision-making for LRD applications returning to the local planning authority in the first instance, with the subsequent right of appeal to An Coimisiún Pleanála”(An Coimisiún Pleanála, 2026), formerly An Bord Pleanála. Comparative research between LRD and SHDs could therefore potentially help determine whether or not recent reforms have helped rebalance the relationship between housing delivery and democratic participation within Ireland’s planning system.

Overall, the research findings raise wider questions regarding trends in public governance. The centralisation of authority evident under the SHD process may reflect a broader policy shift towards stronger national coordination in response to societal challenges such as the housing crisis. Future research could therefore examine whether similar patterns of centralisation are emerging in other areas of public governance, including sectors such as healthcare or education, where national coordination is increasingly emphasised in response to complex policy challenges.

7.5 Final Reflection –

In conclusion, the SHD framework did not remove democratic engagement from Ireland’s planning system but fundamentally altered how it operated in practice. The SHD process reconfigured the institutional balance between housing delivery and democratic governance by centralising decision-making authority, prioritising national housing policy objectives, and

limiting the determinative influence of public participation. These findings demonstrate that the SHD process affected democratic engagement through structural institutional reform, reshaping the roles of public participation, local authority influence, and accountability within Ireland's planning system between 2016 and 2022.

Bibliography

- An Bord Pleanála (2020a) Inspector's Report: Strategic Housing Development at Taylors Lane, Ballyboden, Dublin 16 (ABP-307222-20). Available at: <https://www.pleanala.ie/anbordpleanala/media/abp/cases/reports/307/r307222.pdf?r=017582793193> [Accessed 23 February 2026].
- An Bord Pleanála (2020b) Board Order: Strategic Housing Development at Taylors Lane, Ballyboden, Dublin 16 (ABP-307222-20). Available at: <https://www.pleanala.ie/anbordpleanala/media/abp/cases/orders/307/d307222.pdf?r=042365455171> [Accessed 23 February 2026].
- An Bord Pleanála (2020c) Board Direction: Strategic Housing Development at Taylors Lane, Ballyboden, Dublin 16 (ABP-307222-20). Available at: <https://www.pleanala.ie/anbordpleanala/media/abp/cases/directions/307/s307222.pdf?r=040510679502> [Accessed 23 February 2026].
- An Bord Pleanála (2023a) Inspector's Report: Strategic Housing Development at Castlelands, Balbriggan, County Dublin (ABP-313210-22). Available at: <https://www.pleanala.ie/anbordpleanala/media/abp/cases/reports/313/r313210.pdf?r=220854114930> [Accessed 23 February 2026].
- An Bord Pleanála (2023b) Board Order: Strategic Housing Development at Castlelands, Balbriggan, County Dublin (ABP-313210-22). Available at: <https://www.pleanala.ie/anbordpleanala/media/abp/cases/orders/313/d313210.pdf?r=410958234981129274> [Accessed 23 February 2026].
- An Bord Pleanála (2023c) Board Direction: Strategic Housing Development at Castlelands, Balbriggan, County Dublin (ABP-313210-22). Available at: <https://www.pleanala.ie/anbordpleanala/media/abp/cases/directions/313/s313210.pdf?r=284702859018> [Accessed 23 February 2026].
- An Coimisiún Pleanála (2026) Large-scale Residential Development. Available at: <https://www.pleanala.ie/en-ie/observation-on-a-large-scale-residential-dev> [Accessed 4 March 2026].
- Abas, A., Arifin, K., Ali, M.A.M. and Khairil, M. (2023) A systematic literature review on public participation in decision-making for local authority planning: A decade of progress and challenges. Available at: <https://www.sciencedirect.com.ucc.idm.oclc.org/science/article/pii/S2211464523000532> [Accessed 28 January 2026].

An Coimisiún Pleanála (2026) Case details 313210. Available at: <https://www.pleanala.ie/en-ie/case/313210> [Accessed 7 February 2026].

An Coimisiún Pleanála (2026) Case details 307222. Available at: <https://www.pleanala.ie/en-ie/case/307222> [Accessed 7 February 2026].

Arnstein, S.R. (1969) A Ladder of Citizen Participation. Available at: <https://www.tandfonline.com/doi/epdf/10.1080/01944366908977225?needAccess=true> [Accessed 28 January 2026].

Ballyboden Tidy Towns Group v An Bord Pleanála & Ors (2022) IEHC 7. High Court. Available at: https://ww2.courts.ie/view/Judgments/9b3ee329-4e04-48f1-b055-e1e6654dcf23/75f16b1a-d2c8-4e46-b26b-2d96a8821bb2/2022_IEHC_7.pdf/pdf [Accessed 24 February 2026].

Bobbio, L. (2018) Designing effective public participation. Available at: https://www.researchgate.net/publication/327835222_Designing_effective_public_participation [Accessed 28 January 2026].

Bovens, M. (2007) Analysing and Assessing Accountability: A Conceptual Framework. Available at: https://onlinelibrary.wiley.com/doi/epdf/10.1111/j.1468-0386.2007.00378.x?saml_referrer [Accessed 26 January 2026].

Citizens Information (2025) Judicial review of public decisions. Available at: <https://www.citizensinformation.ie/en/government-in-ireland/how-government-works/standards-and-accountability/judicial-review-public-decisions/> [Accessed 23 February 2026].

Citizens Information (2025) An Coimisiún Pleanála. Available at: <https://www.citizensinformation.ie/en/housing/planning-permission/an-bord-pleanala/> [Accessed 3 March 2026].

Collins, P. (2025) Overcoming centralisation through collaborative planning: the case of Moycullen village, Ireland. Available at: <https://www.emerald.com/jpmd/article-pdf/18/2/258/9851162/jpmd-06-2024-0063.pdf> [Accessed 28 January 2026].

Collins, K. and Ison, R. (2006) Dare we jump off Arnstein's ladder? Social learning as a new policy paradigm. Available at: https://www.researchgate.net/publication/42793728_Dare_we_Jump_off_Arnstein's_Ladder_Social_Learning_as_a_New_Policy_Paradigm [Accessed 28 January 2026].

Dalal-Clayton, B., Dent, D. and Dubois, O. (2000) Approaches to Participation in Planning. Available at: https://www.jstor.org/stable/pdf/resrep18122.9.pdf?refreqid=fastly-default%3Afb1b4cbd1f8fb2970616a00ae1e72a5b&ab_segments=&initiator=&acceptTC=1 [Accessed 28 January 2026].

Department of Housing, Local Government and Heritage (2025) Overview of Planning in Ireland. Available at: <https://www.gov.ie/en/department-of-housing-local-government-and-heritage/publications/overview-of-planning-in-ireland/> [Accessed 29 January 2026].

Edgeworth, M. (2021) How the Irish judicial review procedure can be utilised to challenge planning decisions. Available at: <https://www.ogier.com/news-and-insights/insights/how-the-irish-judicial-review-procedure-can-be-utilised-to-challenge-planning-decisions/> [Accessed 2 February 2026].

European Parliament (2019) Transparency, integrity and accountability in the EU institutions. Available at: [https://www.europarl.europa.eu/RegData/etudes/BRIE/2019/608873/IPOL_BRI\(2019\)608873_EN.pdf](https://www.europarl.europa.eu/RegData/etudes/BRIE/2019/608873/IPOL_BRI(2019)608873_EN.pdf) [Accessed 26 January 2026].

Farrell, M. (2024) Accountability as a mechanism and a virtue in Irish public sector recordkeeping. Available at: <https://www.emerald.com/rmj/article-pdf/34/2-3/190/9470811/rmj-09-2023-0051.pdf> [Accessed 25 January 2026].

Grist, B. (2012) An Introduction to Irish Planning Law. 2nd edition. Dublin: Institute of Public Administration.

Hearne, R. (2021) Housing Shock: The Irish Housing Crisis and How to Solve it. Available at: <https://www-cambridge-org.ucc.idm.oclc.org/core/books/housing-shock/DC1FDC89FFC7D6B88AF883416E02166D> [Accessed 5 February 2026].

Henriques, G. (2023) Is Justification the Most Important Word in Human Language? Available at: <https://www.psychologytoday.com/ie/blog/theory-of-knowledge/202310/is-justification-the-most-important-word-in-human-language> [Accessed 25 January 2026].

Innes, J.E. and Booher, D.E. (2004) Reframing Public Participation: Strategies for the 21st Century. Available at: <https://escholarship.org/uc/item/4gr9b2v5> [Accessed 28 January 2026].

- Irish Planning Institute (2019) Key Issues covered in IPI Review of Strategic Housing. Available at: https://www.ipi.ie/sites/default/files/accordion-files/final_shd_submission_for_dhplg_16july2019.pdf [Accessed 4 February 2026].
- Jones, S. (2022) Interpreting Themes From Qualitative Data: Thematic Analysis. Available at: <https://www.evalacademy.com/articles/interpreting-themes-from-qualitative-data-thematic-analysis> [Accessed 7 February 2026].
- Lennon, M. and Waldron, R. (2019) De-democratising the Irish Planning System. Available at: https://pureadmin.qub.ac.uk/ws/portalfiles/portal/166563500/Lennon_and_Waldron_2019_De_democratising_the_Irish_Planning_System.pdf [Accessed 3 February 2026].
- Lima, V. (2018) Delivering Social Housing: An Overview of the Housing Crisis in Dublin. Available at: <https://mural.maynoothuniversity.ie/id/eprint/10432/1/Lima-2018-Delivering-Social-Housing-Repec.pdf> [Accessed 8 February 2026].
- Mason Hayes & Curran (2021) Resolving the Housing Crisis: Why Are So Many Strategic Housing Development Permissions Being Quashed? Available at: <https://www.mhc.ie/latest/insights/resolving-the-housing-crisis-why-are-so-many-strategic-housing-development-permissions-being-quashed> [Accessed 3 February 2026].
- McDonald, F. and Sheridan, K. (2008) The Builders: How a Small Group of Property Developers Fuelled the Building Boom and Transformed Ireland. Dublin: Penguin Ireland.
- Mirza, H., Bellalem, F. and Mirza, C. (2023) Ethical Considerations in Qualitative Research: Summary Guidelines for Novice Social Science Researchers. Available at: https://www.researchgate.net/publication/370838199_Ethical_Considerations_in_Qualitative_Research_Summary_Guidelines_for_Novice_Social_Science_Researchers [Accessed 7 February 2026].
- Mulgan, R. (2000) 'Accountability': An Ever-Expanding Concept? Available at: <https://onlinelibrary.wiley.com/doi/epdf/10.1111/1467-9299.00218> [Accessed 26 January 2026].
- Murray, L. (2025) The Optics Around Planning in Ireland: Challenges and Shifting Perceptions. Available at: <https://www.cbre.ie/press-releases/the-optics-around-planning-in-ireland> [Accessed 29 January 2026].

- Office of the Planning Regulator (2021) Update on legislation to replace the Strategic Housing Development (SHD) planning arrangements. Available at: <https://www.opr.ie/wp-content/uploads/2021/10/PL-10-2021-Update-on-legislation-to-replace-the-SHD-planning-arrangements-1.pdf> [Accessed 23 February 2026].
- Office of the Planning Regulator (2026) Introduction to Planning. Available at: <https://www.opr.ie/introduction-to-planning/> [Accessed 29 January 2026].
- Olson, M. (1965) The Logic of Collective Action: Public Goods and the Theory of Groups. Available at: <https://archive.org/details/logicofcollectiv0124olso/page/n8/mode/1up> [Assessed 28 January 2026].
- Pierce, R. (2008) Collecting Data Sets: Case Studies, Experimental, Comparative, Longitudinal and Action Research Methods. Available at: <https://methods-sagepub-com.ucc.idm.oclc.org/book/mono/research-methods-in-politics/chpt/collecting-data-sets-case-studies-experimental> [Accessed 7 February 2026].
- Reidy, J. and Mulryan, L. (2024) Review of Strategic Housing Developments. Available at: https://assets.gov.ie/static/documents/Review_of_Strategic_Housing_Developments.pdf [Accessed 2 February 2026].
- Rowe, G. and Frewer, L.J. (2000) Public Participation Methods: A Framework for Evaluation. Available at: <https://journals.sagepub.com/doi/epdf/10.1177/016224390002500101> [Accessed 28 January 2026].
- Sehring, J., Korhonen-Kurki, K. and Brockhaus, M. (2013) Challenges and limitations of QCA. Available at: <https://www.jstor.org/stable/pdf/resrep02339.8.pdf?refreqid=fastly-> [Accessed 7 February 2026].
- Stieglitz, R.D. (2024) Land-use planning. Available at: <https://www.ebsco.com/research-starters/environmental-sciences/land-use-planning> [Accessed 25 January 2026].
- Tajik, O., Golzar, J. and Noor, S. (2024) Purposive Sampling. Available at: https://www.researchgate.net/publication/391849280_Purposive_Sampling [Accessed 26 February 2026].

- Theyyan, B.M. (2015) Arnstein's Ladder of Citizen Participation a Critical Discussion. Available at: https://www.researchgate.net/publication/322682350_ARNSTEIN'S_LADDER_OF_CITIZEN_PARTICIPATION_A_CRITICAL_DISCUSSION#fullTextFileContent [Accessed 28 January 2026].
- Walsh, E. (2020) Political Accountability: Vertical, Horizontal, and Diagonal Constraints on Governments. Available at: https://www.vdem.net/media/publications/pb_22_final.pdf [Accessed 26 January 2026].
- Wall, R. and Elliott, G. (2024) Proposed law designed to scare local groups off potential challenges. Available at: <https://www.thejournal.ie/readme/planning-and-development-bill-concerns-6295806-Feb2024/> [Accessed 4 February 2026].
- Yang, H., Redmond, D. and Williams, B. (2024) Planning Policies and Housing Development: Evaluating Ireland's Fast-Track Planning Scheme 2017-2021. Available at: <https://www.mdpi.com/2073-445X/13/12/2044> [Accessed 25 January 2026].

Appendix A: Thematic Codebook and Extracts

A.1 Thematic Codebook

Thematic Codebook			
Code	Main Theme	Sub-Theme	Explanation
A1	Democratic Accountability	Transparency	Openness of decision-making, availability of reports, publication of inspector findings.
A2	Democratic Accountability	Justification / Reason-Giving	Evidence of reasons provided for decisions and responses to submissions.
A3	Democratic Accountability	Oversight and Review	Mechanisms of scrutiny such as inspector review, appeals, and procedural checks.
A4	Democratic Accountability	Judicial Review as Accountability	Use of judicial review as a mechanism to challenge decisions.
B1	Public Participation	Formal Participation	Statutory participation mechanisms such as written submissions and consultation periods.
B2	Public Participation	Tokenism	Participation acknowledged but with little or no influence on outcomes.
B3	Public Participation	Meaningful Participation	Participation that influenced decision-making or led to modification.
B4	Public Participation	Barriers to Participation	Constraints such as time limits, technical language, cost, or legal complexity.
C1	Governance Structure	Centralisation	Shift of decision-making power from local authorities to central bodies.
C2	Governance Structure	Technocratic Decision-Making	Reliance on expert assessment and regulatory compliance over political input.
C3	Governance Structure	Removal of Local Authority Role	Reduction of elected councillor involvement in decision-making.
D1	Planning Outcomes	Efficiency and Delivery	References to speed, certainty, and housing delivery targets.

Note. Chart created by author based on data from An Bord Pleanála (2020; 2023), Case details 313210 and Case details 307222.

A.2 Applied Thematic Coding – Castlelands SHD

THEMATIC CODING		Document Type	Date	Author
Case Name	ABP Reference			
Castlelands SHD, Balbriggan, Co. Dublin.	ABP-313210-22	Inspector Report	31st January 2023	Colin McBride
QUOTE LOCATION	Extract / Quotation	Code Applied	Analytical Notes	
7.2	A total of 11 third party submissions have been received.	B1	Shows inclusion of public participation but not evidence of influence on the final decision.	
7.2	Concern is expressed regarding the high density nature of the proposal and the unit mix with a majority of apartments.	B3	Demonstrates community engagement with density and design concerns.	
7.2	Failure to comply with Castletand Masterplan, which was subject to extensive public consultation	A3	Highlights potential tension between prior participatory planning frameworks and SHD decision-making.	
7.2	The proposal materially contravenes development plan policy on a number of issues including density, no. of units, parking, open space, separation distances and building heights	A2	This shows the Inspector is acknowledging policy conflict and providing justification analysis.	
7.2	The proposal materially contravenes development plan policy on a number of issues including density, no. of units, parking, open space, separation distances and building heights	C1	Centralisation - because under SHD, the board has the power to approve developments that materially contravene local development plans.	
7.2	Concerns are expressed regarding impact on existing local emergency services with particular regard to capability of the fire service to deal with the structures of the height proposed.	B4	The reference to emergency service capability highlights the technical nature of engagement, suggesting potential barriers for non-expert participants.	
7.2	The submission highlights that the link to the Skerries Road must be undertaken early and the completion of such should be a condition in the event of a grant of permission.	B3	If such a condition is included, this extract can be recorded as evidence of meaningful participation.	
7.2	The impact of the proposal on school demand is noted with the third parties requires that a stipulations included that the applicant liaise with the department of Education in relation to provision of school infrastructure to cater for the additional demand.	B3	Shows request for enforceable conditions.	
7.2	Inadequate consideration of impact on wintering birds. Impact on species of conservation interest and vulnerability with the curlew present on site. Impact on areas of conservation value (candidate NHA areas) located in close proximity that are dependent on springs with concerns regarding hydrological impact.	B4	Reinforcing structural participation barriers under SHD.	
8.1	The Chief Executive's report, in accordance with the requirements of section 8(3)(a) of the Act of 2016, was received by An Bord Pleanála on the 30th of May 2022.	A1	Reference to statutory process and formal reporting requirements.	
8.1	The report details the site location/site zoning, provides a description of the proposed development, details pre-submission meetings, planning history, lists the issues in the received submissions, the internal reports of Fingal County Council are summarised, details the relevant Development Plan policies and objectives, and provides a planning assessment of the development.	A1	Openness of decision-making.	
8.1	provides a planning assessment of the development.	A2	Formal articulation of reasons underpinning conclusions.	
8.2	The CE report, in Section 1.8, also includes a summary of the views of the elected members for the area held on the 29th of April 2022.	C3	Elected members role is consultative and summarised not determinative.	
8.4	A submission has been received from Irish Water.	C2	Reliance on technical infrastructure authority.	
8.5	Interdepartmental Reports have been received from the Drainage Division, Transportation Planning Division, Parks and Landscape Services, Housing, Waste Department, and the Environmental Health Office.	C2	Decision-making informed through experts and regulatory inputs.	
8.6	The PA draw attention to report by the Architects Department relating architectural quality and materiality.	C2	Professional expertise looked at and believed over political or community input.	
8.6	Detailed design of the link road including junctions, pedestrian crossing facilities, cycling and pedestrian infrastructure and linkages should be agreed in writing with the PA prior to commencement of construction.	A3	Use of conditions as a procedural control mechanism.	
8.6	The management to the phasing strategy in which the Castlelands Link Road is fully delivered in the first phase is welcomed by the PA.	D1	Emphasis on sequencing and delivery certainty.	
8.6	A financial contribution in lieu of open space provision is required and will be used towards upgrade of recreational facilities in Balbriggan (Bremore Regional Park).	C1	Local open space deficit addressed through centralised compensatory mechanisms.	
8.6	Previous geophysical survey and test-excavation identified 4 areas of archaeological interest with material dating from the Bronze Age. The Heritage Officer considers that the proposed development will have a detrimental impact on the areas identified and potential archaeological features. If not possible to preserve these areas in situ through redesign the archaeological excavation under license is required and can be subject to condition.	A3	Procedural safeguards rather than redesign requirements.	
8.6	A screening report for AA has been submitted and ABP as the competent authority will carry out an Appropriate Assessment of the proposed development.	C1	Decision-making authority located at national level.	
8.6	The proposed development was considered to be consistent with national, regional and local planning policy and subject to conditions would not seriously injure the residential amenities of property in the vicinity and would be acceptable in terms of pedestrian/traffic safety and convenience.	A2	Clear note of reasons for approval.	
9	Section 9(4) of the Act provides that the Board may decide to: (a) grant permission for the proposed development, (b) grant permission for the proposed development subject to such modifications to the proposed development as it specifies in its decision, (c) grant permission, in part only, for the proposed development, with or without any other modifications as it may specify in its decision, or (d) refuse to grant permission for the proposed development, and may attach to a permission under paragraph (a), (b) or (c) such conditions it considers appropriate.	C1	This shows the relocation of decision-making authority under SHD. Instead of elected local authorities determining large-scale residential applications, the power rests with ABP. This shows a shift away from local democratic control towards centralisation.	
9	Section 9(4) of the Act provides that the Board may decide to: (a) grant permission for the proposed development, (b) grant permission for the proposed development subject to such modifications to the proposed development as it specifies in its decision, (c) grant permission, in part only, for the proposed development, with or without any other modifications as it may specify in its decision, or (d) refuse to grant permission for the proposed development, and may attach to a permission under paragraph (a), (b) or (c) such conditions it considers appropriate.	A3	The Board's ability to attach conditions reflects procedural accountability mechanisms internal to the system. Oversight occurs through legally binding conditions imposed by the decision-maker.	
9	In conclusion, I consider the principle of development as proposed to be acceptable on this site. The site is suitably zoned for residential and ancillary commercial development, is a serviced site, where public transport, social, educational and commercial services are available in close proximity and which facilitates future provision of educational and leisure facilities. The proposed development is of a suitably high quality and provides for a mix of one, two and three-bedroom apartments and two, three and four-bedroom dwellings, which are served by suitable quality communal, private and public open space. I do not foresee that the development will negatively impact on the existing residential and visual amenities of the area. Suitable pedestrian, cycling and public transport is available to serve the development. The development is generally in accordance with National Guidance and Local Policy and is in accordance with the proper planning and sustainable development of the area.	C2	Legitimacy is delivered through alignment with policy frameworks rather than from local deliberation or electoral mandate. Decision-making authority is exercised through professional expertise, reinforcing a technocratic governance model under SHDs.	
13	I recommend that section 9(4)(a) of the Act of 2016 be applied, and that permission is GRANTED for the development, for the reasons and considerations and subject to the conditions set out below.	A3	The decision structure indicates that concerns are addressed through conditionality rather than refusal or negotiated redesign. Conditions function as administrative safeguards that manage impacts post-consent. This suggests a model that is regulatory and procedural rather than participatory.	
16.5	No dwellings shall be occupied until the entirety of Castlelands Link Street is provided including the bridge over the rail line and junction access to the R127.	D1	This condition reflects the SHDs prioritisation of delivery and is structured around implementation efficiency rather than renewed democratic engagement.	

Case Name	ABP Reference	Document Type	Date	Author
Castlelands SHD, Balbriggan, Co. Dublin.	ABP-313210-22	Board Order	18th March 2023	Una Crosse
Decision	Grant permission for the above proposed development in accordance with the said plans and particulars based on the reasons and considerations under and subject to the conditions set out below.	C1	Decisions bypass local authority. Confirms that decision-making authority under SHD is exercised by ABP, showing evidence of centralisation.	
Reasons and Considerations	The submissions and observations received	B1	This indicates procedural compliance with participatory requirements.	
Reasons and Considerations	The Chief Executive's Report submitted by Fingal County Council	C2	This indicates that decision-making under SHD is mediated through professional, managerial, and technical expertise rather than through democratic deliberation as local authority level.	
Reasons and Considerations	The Chief Executive's Report submitted by Fingal County Council	C3	The boards reliance on this document shows how the role of local government under SHD is reframed from decision-maker to a technical consultee.	
Conclusions on Proper Planning and Sustainable Development	The board considered that, subject to compliance with the conditions set out below that the proposed development in this accessible urban location, would not seriously injure the residential or visual amenities of the area, or the cultural heritage, would be acceptable in terms of urban design, height, scale, mass, and would be acceptable in terms of pedestrian and traffic safety.	A2	Shows formal reason-giving within the SHD process.	
Conclusions on Proper Planning and Sustainable	The board considered that, subject to compliance with the conditions set out below that the proposed development in this accessible urban location,	C2	Democratic engagement is clearly secondary to expert-led evaluation.	
Conclusions on Proper Planning and Sustainable	Subject to compliance with the conditions set out below.	A3	Highlights how accountability under SHD is exercised through enforceable conditions rather than deliberative regulation.	
Castlelands SHD, Balbriggan, Co. Dublin.	ABP-313210-22	Board Direction	13th March 2023	Una Crosse
Introduction	The Board decided to grant permission generally in accordance with the Inspector's recommendation.	C2	This shows that final authority rests with the Board but is mediated through expert assessment rather than democratic deliberation.	
Introduction	The Board decided to grant permission generally in accordance with the Inspector's recommendation.	A3	The Board's adoption of the Inspector's recommendation demonstrates accountability operating within the SHD system, where oversight is exercised through professional review and conditional compliance rather than through democratic scrutiny.	

Note. Chart created by author based on data from An Bord Pleanála (2023), Case details 313210.

A.3 Applied Thematic Coding – Taylors Lane SHD

THEMATIC CODING		Document Type	Date	Author
Case Name	ABP Reference			
Taylors Lane SHD, Ballyboden, Dublin 16.	ABP-307222-20	Inspector's Report	26th August 2020	Rónán O'Connor
7	76 no. submissions on the application have been received from the parties as detailed in Appendix 1 of this report.		This extract shows public participation under the SHD process. While it confirms a significant number of submissions was received, it provides no indication that these submissions influenced the outcome of the decision, highlighting participation as procedural rather than deliberative.	
7	Ballyboden Village Area Plan does not feature in any of the pre-application or application documents/Development is very different to that envisaged in the Ballyboden Village Plan/Residents participated in the consultation for this plan/Suggestions in the Ballyboden Village Plan was for low level low density development in keeping with the current local housing made up of two-storey semi-detached houses.	B1	This highlights a shift in decision-making authority away from locally agreed planning frameworks towards centralised SHD decision-making. Despite prior public participation in the Ballyboden Village Area Plan, its objectives are not reflected in the SHD proposal, indicating that participatory planning mechanisms carry limited weight under the SHD process.	
7	Planning permission should be refused.	C1		
7	Proposal will negatively impact the character and the streetscape of Ballyboden Village.	B2	This extract represents third-party participation that resulted in a request for refusal. This lacked influence under the SHD process as there is no indication that such request altered the outcome.	
7			This extract reflects community participation focused on local character and visual amenity. It demonstrates how residents articulated their concerns through formal submission channels, even though such concerns are typically assessed by expert-led evaluations under the SHD process.	
8.1	South Dublin County Council considers the proposed development would risk being car dependent/SDCC. Considers the proposed density to be a reason to refuse permission/Recommended that the applicant revise the proposals to provide a development of a lower density in a new planning proposal/Planning Authority is supportive of a residential scheme at an appropriate density.	B1		
8.1.1	A summary of the views of elected members as expressed at the Rathfarnham/Templeogue/Firhouse/Bohernabreena Area Committee held on 9/6/2020 is included in the Chief Executive's Report and is summarised below.	C3	This extract demonstrates that the Planning Authority formally recommended refusal or substantial revision of the proposal due to density and sustainability concerns. However, under the SHD process, the role of the local authority is advisory rather than determinative. This reflects the reduction of elected local authority influence in final decision-making, reinforcing the centralised governance structure of SHDs.	
13	Having regard to the above assessment, I recommend that section 9(4)(a) of the Act of 2016 be applied and that permission be GRANTED for the proposed development, subject to conditions, for the reasons and considerations set out below.	C3	This extract demonstrates how the role of elected members under the SHD process is reduced to a consultative function. Their views are summarised within the Chief Executive's Report rather than forming part of a binding or decision-making process, illustrating the displacement of local democratic authority in favour of a centralised planning model.	
14	The Board considered that, while a grant of permission for the proposed Strategic Housing Development would not materially contravene a zoning objective of the statutory plans for the area, a grant of permission could materially contravene the South Dublin County Development Plan 2016-2022 in relation to building height.	A2	This extract reflects formal reason-giving within the SHD process, where approval is justified through reference to prior assessment and criteria rather than through participatory submissions.	
14	The Board considered that, while a grant of permission for the proposed Strategic Housing Development would not materially contravene a zoning objective of the statutory plans for the area, a grant of permission could materially contravene the South Dublin County Development Plan 2016-2022 in relation to building height.	C1	This extract shows how ABP acknowledges a material contravention of a locally adopted Development Plan, but retains authority to proceed. This is direct evidence of centralised decision-making under the SHD process.	
14	The Board considered that, while a grant of permission for the proposed Strategic Housing Development would not materially contravene a zoning objective of the statutory plans for the area, a grant of permission could materially contravene the South Dublin County Development Plan 2016-2022 in relation to building height.	C2	This decision is framed through expert interpretation of zoning objectives, statutory plans, material contravention thresholds. There is no reference to political judgement or public input. Legitimacy is clearly constructed through technical reasoning.	
14	Grant permission for the above proposed development in accordance with the said plans for particulars based on the reasons and considerations under and subject to the conditions set out below.	C1	This extract formally confirms that decision-making authority under the SHD process rests with ABP rather than the local planning authority. The grant of permission is issued directly by the Board, reinforcing the centralisation of planning power and the displacement of locally elected decision-making in large-scale residential development.	
15.3	The period during which the development hereby permitted may be carried out shall be five years from the date of this Order. Reason: In the interests of proper planning and sustainable development.	A3	This extract illustrates how accountability under the SHD process is exercised through formal, procedural controls rather than ongoing democratic oversight. The imposition of a time limit functions as a safeguard, reinforcing a model of accountability based on legal compliance and administrative conditions rather than participatory review.	
Case Name	ABP Reference	Board Order	Date	Author
Taylors Lane SHD, Ballyboden, Dublin 16.	ABP-307222-20		14th September 2020	Paul Hyde
Decision	Grant permission for the above proposed development in accordance with the said plans and particulars based on the reasons and considerations under and subject to the conditions set out below.	C1	This extract formally confirms that decision-making authority under the SHD process rests with ABP rather than local planning authority, reinforcing the centralisation of power and the displacement of locally elected decision-making.	
Reasons and Considerations	In coming to its decision, the Board had regard to the following: The Rebuilding Ireland Action Plan for Housing and Homelessness 2016.	C2	This extract illustrates technocratic decision-making under the SHD process, where planning outcomes are justified by reference to national housing policy frameworks rather than local democratic deliberation or community participation.	
Reasons and Considerations	The submissions and observations received.	B1	This extract demonstrates that third-party submissions were formally acknowledged within the SHD process, indicating a procedural inclusion of public participation.	
Reasons and Considerations	The Chief Executive Report from the planning authority.	C3	This extract shows how the role of the local planning authority under the SHD process is reduced to a consultative function, with the Chief Executive's Report informing but not determining the Board's decision, weakening the link between local democratic input and planning outcomes.	
Conclusions on Proper Planning and Sustainable Development	The Board considered that, subject to compliance with the conditions set out below that the proposed development would constitute an acceptable quantum and density of development in this accessible urban location, would not seriously injure the residential or visual amenities of the area, would be acceptable in terms of urban design, height and quantum of development and would be acceptable in terms of pedestrian safety.	A2	This extract demonstrates formal reason-giving within the SHD process, where approval is justified through planning criteria and technical assessment rather than through responsiveness to public submissions or political deliberation.	
Conclusions on Proper Planning and Sustainable Development	The Board considered that, subject to compliance with the conditions set out below that the proposed development would constitute an acceptable quantum and density of development in this accessible urban location, would not seriously injure the residential or visual amenities of the area, would be acceptable in terms of urban design, height and quantum of development and would be acceptable in terms of pedestrian safety.	C2	This extract demonstrates technocratic decision-making, with approval justified through professional planning assessments rather than democratic participation or political deliberation.	
Conclusions on Proper Planning and Sustainable Development	Subject to compliance with the conditions set out below.	A3	This highlights how accountability under the SHD process is exercised through enforceable planning conditions rather than through ongoing democratic oversight or participatory engagement. This shows a procedural model of accountability.	
Case Name	ABP Reference	Board Direction	Date	Author
Taylors Lane SHD, Ballyboden, Dublin 16.	ABP-307222-20		8th September 2020	Stephen Bohan
Introduction	The Board decided to grant permission generally in accordance with the Inspector's recommendation.	C2	This illustrates technocratic decision-making under the SHD process, where final planning decisions are grounded in the Inspector's expert assessment rather than in democratic deliberation.	
Introduction	The Board decided to grant permission generally in accordance with the Inspector's recommendation.	A3	This reflects oversight through inspector review, illustrating how accountability under SHD is procedural and internally structured rather than democratically driven.	

Note. Chart created by author based on data from An Bord Pleanála (2020), Case details 307222.